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File No: EXP202210421

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ASOCIACIÓN CANNÁBICA CLUB 26 (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202210421

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 23, 2022. The complaint is directed against ASOCIACIÓN CANNÁBICA CLUB 26 with NIF G42874891 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent is responsible for a premises that has two surveillance cameras facing the public road at its entrance, without prior administrative authorization for this.

Images of the location of the cameras are provided (Annex I WhatsApp 1-2-3).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 10/11/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 20/11/22 as evidenced by the acknowledgment of receipt in the file.

THIRD: On December 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question within the framework of File No. ***FILE.1, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

PRELIMINARY INVESTIGATIVE ACTIONS REPORT

BACKGROUND

Date of receipt of the complaint: September 23, 2022

Complainant: A.A.A. (hereinafter, the complainant)

Respondent: ASOCIACIÓN CANNÁBICA CLUB 26 and RELAX CANNABIS CLUB (hereinafter, the respondent)

Facts according to the statements of the complainant:

The complainant states that the respondent is responsible for a premises that has two surveillance cameras facing the public road at its entrance, without prior administrative authorization for this.

Images of the location of the cameras are provided.

Date on which the reported facts occurred: September 22, 2022.

Relevant documentation provided by the complainant:

- 4 photographs of the entrance to the premises showing 2 surveillance cameras pointing outward and a sign warning of a monitored area, without the image definition allowing the content to be read.

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

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RELAX CANNABIS CLUB at ***ADDRESS.1 and CANNABIS ASSOCIATION CLUB 26 with NIF G42874891.

RESULT OF THE INVESTIGATION ACTIONS

The CIF G42874891 of the investigated party is derived from the document obtained from the consultation of the website ***URL.1.

By downloading the csv file of the registry of legal entities in Catalonia (document: Registry of entities of Catalonia.xlsx), filtering by municipality and sorting by address, it is found that at number ***ADDRESS.1 of ***LOCALITY.1, there are 2 associations of "CANNABIS CONSUMERS":

Associació la Receta 26, G66067521, registered in 2014 and
Asociación Cannábica Club 26, G42874891, registered in 2021.

Associated document: capture of cannabis associations registry entities Catalonia.

On March 9, 2023, the Asociación Cannábica Club 26 (being the most recently registered) is requested for information regarding the person responsible for the facility, installed cameras, their scope, location of visual monitoring, authorized persons, recordings, informative posters, and whether the recording has been entrusted to a third party.

On March 10, 2023, before the Single Enabled Electronic Directorate service, the entity appears:

Associated document: G42874891

Name/Corporate name: ASOCIACION CANNABICA CLUB 26

Represented by: Document: ***NIE.1

Name: B.B.B.

In the capacity of HOLDER to ACCEPT the notification

It is NOTED that the recipient of the electronic notification is the same person who on December 15, 2022, received the postal notification of the reiteration of the request for information (outgoing registration REGAGE22s00055765752) dated December 5, 2022, sent to RELAX CANNABIS CLUB: B.B.B. DOCUMENT ***NIE.1.

On March 24, 2023, a RESPONSE TO THE REQUEST is received.

B.B.B., with NIE ***NIE.1, of legal age, with a notification address at ***ADDRESS.2 of ***LOCALITY.1, representing the ASOCIACIÓN CANNÁBICA CLUB 26, with CIF G66067521, appears:

Identifies the person responsible for the facility: Company ASOCIACIÓN CANNÁBICA CLUB 26, with CIF G42874891 and registered office at C/ ***ADDRESS.1.

States that it has 16 cameras, attaches technical sheets, photographs of the location, and images captured by 13 cameras.

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Provides a photograph of the monitoring screen, which is located, like the recordings, in a private office locked with a key to which only the owners and employees have access. The recordings, available for 15 days, require a password for access.

Attaches an image of an informative poster located at the reception, just above the door that provides access to the club, where its content cannot be read.

States that there is no third party responsible for the viewing and/or recording of the images.

Requests that the address for notifications be considered as located at ***ADDRESS.2 and the email ***EMAIL.1.

CONCLUSIONS

The sought CIF is G42874891 of the ASOCIACION CANNABICA CLUB 26 represented by B.B.B.

Document: ***NIE.1

It is also noteworthy that in its response letter, the association:

- Refers to another CIF G66067521 corresponding to "Associació la Receta 26", represented by the same person: B.B.B., NIF and address.
- Declares that it possesses 16 surveillance cameras and sends photographs of many of them and that the viewing is done by the organization itself in a restricted access office.
- Does not send images of what is captured by the two exterior cameras, oriented towards the public road.
- The resolution of the photograph of the internal video surveillance warning poster makes its content illegible.
- Does not present an image of the external video surveillance warning poster of the premises.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of

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Digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states:

"The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, the migration of highly qualified persons, taxation, and the digitization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is modified, the procedural deadline established in Article 64.2 "in fine" shall be applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In this case, the complaint dated 23/09/22 is analyzed, through which the following is reported:

"presence of cameras in a cannabis club focusing on the public road."

The respondent certifies that it has an informative sign inside the establishment in a visible area in accordance with current regulations, so the facts will be limited to the presence of the external cameras subject to the complaint.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling areas of transit of the same without justified cause.

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Nor can images of public space be obtained with such devices, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth remembering that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who feel intimidated by them, as it affects their free transit area.

III

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the respondent has a camera system oriented towards public space, which could affect the rights of third parties without justified cause.

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts could constitute an infringement, attributable to the respondent, for violating the content of Article 5.1 c) of the GDPR, previously mentioned.

IV

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing including the conditions for consent in accordance with Articles 5, 6, 7, and 9 (...).”

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When justifying the sanction, it is taken into account that the devices are oriented towards public space, which presumes an indeterminate impact on the rights of third parties, which could even disproportionately affect their privacy, considering the conduct as grossly negligent, which justifies an initial proposed sanction of €500, a sanction situated at the lower end of the scale for such conduct.

VI

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Among the measures to be adopted in case of failing to prove the legality of the system, it is reminded that this body may order the withdrawal and/or reorientation towards its private limits of the device (facade of the premises), once the corresponding allegations have been examined.

It is warned that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which could lead to the opening of a further administrative sanctioning procedure.

The requested party must provide a screenshot with the date and time of what is captured by the external cameras in question, without prejudice to any legal allegations they deem necessary to make. Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ASOCIACIÓN CANNÁBICA CLUB 26, with NIF G42874891, for the alleged infringement of Article 5.1c), classified in Article 83.5 letters a) of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorato of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €500, without prejudice to what results from the instruction.

Without prejudice to what results from the instruction, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine. However, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the person allegedly responsible for the infringement, this sanction would be replaced by the declaration of the infringement.

FIFTH: TO NOTIFY this agreement to ASOCIACIÓN CANNÁBICA CLUB 26, with NIF G42874891, granting a hearing period of ten working days for them to submit allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of

this reduction, the sanction would be set at €400, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €400, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to that which corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at [Insert the corresponding text for €300].

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or waiver of any administrative action or appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above, €400 or €300, you must make the payment by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: CAIXXXX-XXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 7, 2023, the respondent has proceeded to pay the sanction in the amount of €300, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any administrative action or appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

According to the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202210421,

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in accordance with the provisions established in Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to ASOCIACIÓN CANNÁBICA CLUB 26.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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